

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**202200566844PRCE: In the Matter of Carol M. Young
06/30/2026 in Department J6
Final Account and Report 2nd and Final Accounting (04/21/24-10/14/25)**

Notice is insufficient. Notice of Hearing (GC-020) served by mail on without copy of petition mailed on 05/05/26 to Greg Young, Misty Young, Carol Young, Bryan Young, Sandra Beers and the PD. The declaration on the POS is signed 04/14/26 and states it was mailed 05/05/26.

The court notes the following:

The account does not balance because conservator has included a “net gain” for the SEP IRA of \$6,702.03. It should not be in the accounting, only in the current market value as the increase in value was not distributed.

The gist of conservator’s entire explanation for the excessive grocery and other charges is that conservator would like consideration of rent to her for the conservatee in the amount of \$750/month plus utilities of \$83/month, for a total of \$833.00/month.

Conservator has not charged this amount to conservatee, but has gone through her previous accounting and states the amounts spent in the conservatorship estate are OK because with the “charge” for rent & utilities the amounts spent are ok.

Petitioner is a fiduciary for conservatee. There never should have been commingling of expenses. Further, if rent was going to be charged, which is reasonable, this should be a monthly expense to the estate and the food, etc. charges for only conservatee charged in the estate.

Rent and utilities for the accounting period, if allowed: Approximately 19 months times \$833 = \$15,827.00.

Disbursements totaled \$48,094.98 for the account period.

The categories routinely charged per month were:

Total amount for accounting:

Caregiver	\$7,760.00
Personal care (including hair, etc.)	\$2,652.80

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Administrative charges: \$4,506.79
There were other miscellaneous charges totaling approximately \$2000.00

Groceries/Eating Out: \$32,975.39 (approximately)

\$32975.39 – 15827 (rent/utilities credit) = \$17,148.39 or \$902.55/month

\$902.54 is a bit high for one person for eating out/groceries per month. I would expect it to be more in line with \$500-600/month.

Conservator Fees: Conservator requests that her conservatorship fees be reserved for services rendered from 12/09/22 – 10/14/25.

On 08/13/25 the Minnesota County of Hennepin District Court appointed Misty Young and Greg Young Guardians of (the person) Carol M. Young and Navigator Fiduciary and Forensic Services, Inc. was appointed Conservator of the estate of Carol M. Young.

Conservator no longer has a conservatorship estate to reserve fees against. As there were questionable charges to the conservatorship estate, commingling between conservator's personal expenses and the conservatorship estate expenses, and overpayment of food/eating out of approximately \$300+/month, the court can either hold a hearing on surcharge of conservator of the estate or order conservator fees previously paid for the period (the overage amount).

If this were on ongoing conservatorship matter in Ventura County, the court would order immediate suspension of conservator of the estate and appointment of a successor conservator of the estate.

As this conservatorship is no longer in our jurisdiction the court intends to approve the account and deny the request to reserve conservator fees.

Bond: On 05/15/26 Colonial Surety Company filed a Notice of Nonpayment of Premium for Bond. Discuss if bond payment has been paid.

Order Final Account for the period of 10/15/25 – 06/30/26.

Discuss distribution of conservatorship funds to Minnesota conservator of the estate.
